MINUTES OF THE CLARE COUNTY BOARD OF COMMISSIONERS

Approved 2/21/2024

225 W. Main St.
Harrison, Michigan 48625

~~Un~~approved minutes
January 17, 2024

Meeting was called to order at 9:00 a.m.

Pledge of Allegiance to the Flag of the United States of America

District 1 Marlene Housler, District 2 Dale Majewski, District 3 Samantha Pitchford, District 4 Jeff Haskell, District 5 David Hoefling, District 6 Jack Kleinhardt, District 7 Gabe Ambrozaitis, District 8 George Gilmore and District 9 Rick Fancon

COMMISSIONERS ABSENT

None

OTHERS PRESENT

Clerk & Register of Deeds Lori Mott, Administrator Lori Phelps, members of the public and zoom participants

APPROVAL OF AGENDA

It was moved by Commissioner Hoefling, seconded by Commissioner Housler to approve the agenda with additions, **motion carried**

*additions to agenda
Move Public Hearings/Special Presentations directly after Approval of Agenda
Add closed session minutes to Approval of Minutes
Add Scheduling to Unfinished Business

PUBLIC HEARINGS/SPECIAL PRESENTATIONS

1. Honorable Joshua M. Farrell
   Judge Farrell informed the Board of Commissioners that in November of 2023 the Michigan Supreme Court appointed him for a two-year term as the Chief Judge over the 80th District Court and the 55th Circuit Court. As a part of that appointment he has had meetings with department heads to see what was working and what was not working. He also began working on a court restructure plan where he looked at number of things that could be improved. Judge Farrell has seen other county departments restructuring their offices and have taken on more responsibilities with fewer resources and less staff. He has restructured some employees in courts and was able to consolidate some positions and eliminate some positions in an effort to accomplish the same. Mr. Worpell will now be Court Administrator for both Clare and Gladwin Counties and Magistrate for both counties. Judge Farrell finished up by confirming he wanted to personally make this announcement while kicking off the New Year and answer any questions.

ELECTION OF VICE-CHAIRPERSON

Chairman Haskell asked for nominations of a vice-chairperson three times and only one nomination was given for Dale Majewski.

It was moved by Commissioner Gilmore, seconded by Commissioner Kleinhardt to nominate Dale Majewski as Vice-Chair, roll call vote revealed:

Yeas: (8) being Commissioners Pitchford, Fancon, Kleinhardt, Hoefling, Housler, Ambrozaitis, Gilmore and Haskell
Nays: (0)
Absent: (0)
Abstained (1) being Commissioner Majewski
Motion carried

REVIEW/ADOPTION OF BOARD RULES

It was moved by Commissioner Majewski, seconded by Commissioner Fancon to adopt the Board Rules as presented, Commissioner Ambrozaitis questioned the work session of the Board Rules. Administrator Phelps explained that a work session would be if a special meeting was called that would be a work session and explained that a special meeting must be requested by three board members to the County Clerk, in writing, with the date, time, place and reason for the special meeting. Commissioner Ambrozaitis requested discussion surrounding the fact that the Commissioners meeting will be cut in half, so should their salary be reduced and feels that it is prudent to the tax payers to reduce salaries if the Board is only having one meeting a month. Commissioner Majewski reminded the Board that one of the reasons for the change was made from a per diem to a flat salary was ease of budgeting. Commissioner Hoefling stated this was the topic he was going to discuss under scheduling. Chairman Haskell agreed to have the scheduling discussion at this point instead of the end of the meeting. Commissioner Hoefling proceeded to request that Committee of the Whole be reinstated and change the time from 9:00 a.m. to 5:00 p.m. Commissioner Gilmore spoke against reinstating Committee of the Whole. Commissioner Ambrozaitis asked Commissioner Majewski if he would be willing to amend his motion to reduce the Commissioners salary, Commissioner Majewski was not willing to amend his motion, roll call vote revealed:

Yeas: (8) being Commissioners Majewski, Fancon, Pitchford, Kleinhardt, Hoefling, Housler, Gilmore and Haskell
Nays: (1) being Commissioner Ambrozaitis
Absent: (0)
Motion carried

It was moved by Commissioner Hoefling, seconded by Commissioner Ambrozaitis to add a Committee of the Whole meetings on the first Wednesday of each month at 5:00 p.m., Commissioner Majewski voiced a concern about Commissioners being able to attend a 5:00 p.m. meeting, Commissioner Ambrozaitis agreed with Commissioner Gilmores original thought that the Commissioners need time for their due diligence and research the topics presented at Committee of the Whole, more discussion ensued and Commissioner Hoefling amended his motion to schedule the meeting at 9:00 a.m., seconded by Commissioner Ambrozaitis roll call vote revealed:

Yeas: (5) being Commissioners Hoefling, Fancon, Housler, Ambrozaitis and Haskell
Nays: (4) being Commissioners Majewski, Gilmore, Kleinhardt and Pitchford
Absent: (0)
Motion carried

Administrator Phelps confirmed with the Board of Commissioners that Board Rules should reflect the Committee of the Whole Meetings.

REVIEW OF COMMITTEE APPOINTMENTS

Administrator Phelps stated the Airport Advisory Board name should be changed to Statutory Airport Committee.

It was moved by Commissioner Majewski, seconded by Commissioner Hoefling to approve the committees as presented with the change to the Airport Committee name, **motion carried.**

APPROVAL OF MINUTES

It was moved by Commissioner Hoefling, seconded by Commissioner Majewski to approve the Board of Commissioners Minutes of December 13, 2023, **motion carried**.

It was moved by Commissioner Majewski, seconded by Commissioner Hoefling to approve the closed session Board of Commissioners Minutes of December 13, 2023, **motion carried**.

GENERAL PUBLIC COMMENT

There was public comment regarding Redding Township and another recall election and the Community of Hope has free clothing to anyone in need.

COMMUNICATIONS LIST

No discussion

ADMINISTRATOR'S REPORT

Administrator Lori Phelps provided the Commissioners with updates regarding revenue sharing, the Axe Michigan Tax Group, county audit, negotiations with UAW and the Sheriff's Department Unions and the budget for 2025. Administrator Phelps asked to schedule a meeting to start discussion regarding the ambulance service in Clare County. There was agreement to put this issue on the agenda for Committee of the Whole on February 7, 2024. Clerk Mott will put notice in the local newspaper. Everyone was in agreement this should be a problem solving discussion, possibly a county-wide millage, and not a session to place blame for the problem because it is no one-entities problem, it is a county-wide issue.

Sheriff John Wilson gave an update to the Board of Commissioners regarding the staff meeting he held the yielded a negative report. Sheriff Wilson then emailed his department heads asking for 5 positive things from each that happened in 2023, he then read all the very positive responses he received, which was a nice report.

JUSTICE

1. Animal Control
   It was moved by Commissioner Housler, seconded by Commissioner Ambrozaitis to approve a department credit card for Animal Control with a credit limit not to exceed $3,000.00, roll call vote revealed:

   Yeas: (9) being Commissioners Housler, Ambrozaitis, Kleinhardt, Fancon, Pitchford, Majewski, Hoefling, Gilmore and Haskell
   Nays: (0)
   Absent: (0)
   Motion carried

HEALTH AND HUMAN SERVICES

1. Veterans Services
   It was moved by Commissioner Hoefling, seconded by Commissioner Ambrozaitis to approve a department credit card for Veterans Service with a credit limit not to exceed $3,000.00, roll call vote revealed:

   Yeas: (9) being Commissioners Hoefling, Ambrozaitis, Kleinhardt, Fancon, Pitchford, Majewski, Housler, Gilmore and Haskell
   Nays: (0)
   Absent: (0)
   Motion carried

PHYSICAL RESOURCES AND ECONOMIC DEVELOPMENT

1. Transit/MDOT (Michigan Department of Transportation) Resolutions
   It was moved by Commissioner Pitchford, seconded by Commissioner Majewski to approve Resolution of Intent #24-03 to apply for financial assistance for fiscal year 2024-25 for Clare County public transportations program, Contract Resolution FY 2024-25 #24-04 which allows Tom Pirnstill, Clare County Transit Director, to execute contracts with MDOT which are $1,898,579.00 or less, Resolution authorizing adoption and ratification of Contract Clauses Certification #24-05 which governs how any transit project requirements apply and such clauses apply to all Federally funded contracts for FY 2024-25, and Resolution adoption and ratification of Public Act 51 to maintain an Accessibility Plan with MDOT #24-06 addressing accessibility for all residents., roll call vote revealed:

   Yeas: (9) being Commissioners Pitchford, Majewski, Gilmore, Fancon, Gilmore, Kleinhardt, Housler, Hoefling and Haskell
   Nays: (0)
   Absent: (0)
   Motion carried

FINANCE AND ADMINISTRATION

1. Statutory Finance Committee
   It was moved by Commissioner Majewski, seconded by Commissioner Hoefling to approve Statutory Finance Committee meeting minutes of December 11, 2023 in the amount of $177,323.09 and December 26, 2023 in the amount of $206,907.03, roll call vote revealed:

   Yeas: (9) being Commissioners Majewski, Hoefling, Gilmore, Fancon, Kleinhardt, Housler, Ambrozaitis, Pitchford and Haskell
   Nays: (0)
   Absent: (0)
   Motion carried

2. Monthly Expenditures
   It was moved by Commissioner Ambrozaitis, seconded by Commissioner Hoefling to approve the expenditures for the month of December, 2023, in the amount of $2,005,305.50 with the General Fund expenditures totaling $1,191,172.24, roll call vote revealed:

   Yeas: (9) being Commissioners Ambrozaitis, Hoefling, Pitchford, Housler, Majewski, Fancon, Gilmore, Kleinhardt and Haskell
   Nays: (0)
   Absent: (0)
   Motion carried

3. Budget Adjustment
   It was moved by Commissioner Gilmore, seconded by Commissioner Majewski to approve Budget Adjustment 24-42 in the amount of $220,302.77, roll call vote revealed:

   Yeas: (9) being Commissioners Gilmore, Majewski, Pitchford, Kleinhardt, Hoefling, Ambrozaitis, Fancon, Housler and Haskell
   Nays: (0)
   Absent: (0)
   Motion carried

4. ACH and Electronic Transactions
   It was moved by Commissioner Kleinhardt, seconded by Commissioner Fancon to approve the ACH and Electronic Transaction Policy, **motion carried**.

CLERK/REGISTER OF DEEDS REPORT

Clerk and Register of Deeds Lori Mott gave an update regarding the February 27, 2024 Presidential Primary Election. Clerk Mott also updated the Board of Commissioners on election changes including Michigan's first ever early in person voting and invited all the Commissioners to vote at the Clare County Early Voting Site at the County Building from February 17th – February 25th. Clare County Transit will be offering free rides to and from the voting sites for early voting and Election Day. Clerk Mott also reported that the cost of early voting and the workload involved for early voting are much higher than originally expected. She also explained her reason for maintaining control at the county level and self-programming, using a different vendor for printing and testing the ballots herself before releasing the ballots to the local clerks for testing. Clerk Mott explained the restructuring in her office and cross training as well.

TREASURER'S REPORT

Treasurer Jenny Beemer-Fritzinger provided all the statutory reports to the Commissioners. She is looking into a new strategy on investments because of minimal movement on interest rates and she may be entering into longer investments to yield higher interest rates. The tax deadlines 2021 delinquent foreclosure are getting near and in anyone needs help with 2021 taxes they can meet with Treasurer Beemer-Fritzinger on 1/25/24 to see if there is anything available to help. There is also an opportunity for a constituent to show cause to the Judge at a Judicial Foreclosure Hearing on 2/22/24 where the Judge may be able to do something to help the constituent. Treasurer Beemer-Fritzinger has been seeing a decrease in foreclosure numbers over the past years.

CHAIRMAN'S REPORT

Chairman Jeff Haskell reported unemployment numbers for Clare County are at 5.3%.

VICE CHAIRMAN'S REPORT

Vice Chairman Dale Majewski has been attending his meetings and reported that Greenwood Township would not be receiving the Robin Grant which is a grant for rural areas.

COMMISSIONER'S REPORT

Commissioner Housler has attended her meetings and reported that Redding Township is not pretty and is hoping they get on with business soon.

Commissioner Hoefling has attended his meetings and reported on the Airport Board, townships, and reiterated there is interest in an ambulance service.

Commissioner Pitchford has attended her meeting.

Commissioner Ambrozaitis reported on the 10 trees to be cut down on the North End of the Airport and the closure of Runway 5/23 (awaiting FAA approval), and reported on happenings at his township.

Commissioner Gilmore attending his meetings and 3 of the 5 Grant Township Board Members are not seeking re-election.

Commissioner Kleinhardt reported that not many people attend the township meetings.

Commissioner Fancon announced he would donate his whole salary if any other commissioner will match it to a local charity, no other commissioner made any comment.

STATE OF THE COUNTY BUDGET

Administrator Phelps reported that she has opened the 2025 budget and would additionally like to work on a 3-year budget. She will continue to monitor the budget and report any progress or issues.

PUBLIC COMMENT

Pat Adams thanked Commissioners for reinstating Committee of the Whole meetings and confirmed he does attend those meetings and thought it was very advantageous.

Dale Majewski announced he is proud that he has donated to Mott's Children's Hospital and St. Jude's since he has been commissioner.

UNFINISHED BUSINESS

1. Redding Township – Commissioner Majewski visited the property Clare County owns in Redding Township and declared it is there and the access to the property is dependent on time of year. Adjacent property owners may be interested in purchasing. Treasurer Beemer-Fritzinger suggested the county attorney look over deed and Chairman Haskell agreed to show it to attorney.

NEW BUSINESS

None

Meeting Adjourned at 10:24 a.m.

Lori Mott, Clerk
Clare County Board of Commissioners

Jeff Haskell, Chairman
Clare County Board of Commissioners